



NON-DISCLOSURE AGREEMENT (NDA)

This **Non-Disclosure Agreement (“Agreement”)** is made and entered into on ____ day of _____, 20__.

BETWEEN

Perceptive Brains IP, an Intellectual Property Consultancy having its office at:

Booth No. 14, Sector 26, Panchkula, Haryana – 134116

(hereinafter referred to as the **“Receiving Party”**, which expression shall unless repugnant to the context include its partners, employees, consultants, successors and permitted assigns)

AND

Name: _____

Address: _____

Contact No.: _____

Email ID: _____

(hereinafter referred to as the **“Disclosing Party”**, which expression shall include his/her/its legal representatives, successors and permitted assigns).

The Receiving Party and the Disclosing Party are hereinafter individually referred to as a “Party” and collectively as the “Parties.”

1. PURPOSE

The Disclosing Party intends to disclose certain confidential and proprietary information to Perceptive Brains IP solely for the purpose of evaluating, advising upon, preparing, prosecuting, filing and managing Intellectual Property Rights including but not limited to:

- Patent
- Trademark
- Copyright



- Industrial Design
 - Geographical Indications
 - Trade Secrets
 - Plant Variety Protection
 - Semiconductor Integrated Circuit Layout Designs
 - Other Intellectual Property related services.
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2. CONFIDENTIAL INFORMATION

“Confidential Information” includes, but is not limited to:

- Ideas and inventions
- Technical know-how
- Research data
- Product concepts
- Drawings
- Designs
- Formulae
- Software
- Source code
- Business plans
- Marketing strategies
- Manufacturing processes
- Prototype information
- Financial information
- Trade secrets
- Customer information
- Product specifications
- Photographs
- Reports
- Any written, oral, electronic or visual information disclosed by the Disclosing Party.

Confidential Information shall include information disclosed before or after execution of this Agreement.



3. OBLIGATIONS OF THE RECEIVING PARTY

Perceptive Brains IP agrees that it shall:

1. Maintain complete confidentiality of all information received.
2. Use the Confidential Information solely for providing Intellectual Property consultancy and related professional services.
3. Not disclose Confidential Information to any third party except:
 - Patent Agents
 - Patent Attorneys
 - Trademark Attorneys
 - Government Authorities
 - Intellectual Property Offices
 - Experts or Consultants

where such disclosure is reasonably necessary for providing professional services and such persons are under an obligation of confidentiality.

4. Exercise reasonable care in protecting the Confidential Information.
5. Restrict access only to employees or professionals having a legitimate need to know.

4. EXCLUSIONS

Confidential Information shall not include information that:

- a. Is already in the public domain through no fault of the Receiving Party;
 - b. Was lawfully known prior to disclosure;
 - c. Is independently developed without reference to the Confidential Information;
 - d. Is received lawfully from another source without confidentiality obligations;
 - e. Is required to be disclosed by law or judicial order.
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5. OWNERSHIP

All Intellectual Property Rights, inventions, discoveries, improvements, trade secrets and related rights shall remain the exclusive property of the Disclosing Party.

Nothing contained in this Agreement shall be construed as granting any licence, ownership or transfer of Intellectual Property Rights to Perceptive Brains IP.

6. NO OBLIGATION TO FILE

Execution of this Agreement does not create any obligation upon Perceptive Brains IP to accept, file or prosecute any Intellectual Property application unless separately agreed in writing.

7. PROFESSIONAL SERVICES

Perceptive Brains IP shall provide services in accordance with mutually agreed professional terms and applicable laws governing Intellectual Property.

8. TERM

This Agreement shall become effective from the date of signing and shall remain valid for **five (5) years**.

The confidentiality obligations shall survive termination of this Agreement.

9. RETURN OF INFORMATION

Upon written request of the Disclosing Party, Perceptive Brains IP shall return or securely destroy Confidential Information wherever reasonably practicable, except records required to be retained under applicable law or for professional record-keeping purposes.



10. NO WARRANTY

The Disclosing Party makes no representation regarding the patentability, registrability, novelty, originality or commercial viability of the disclosed information.

11. GOVERNING LAW

This Agreement shall be governed by the laws of India.

The Courts at **Panchkula, Haryana** shall have exclusive jurisdiction over any dispute arising under this Agreement.

12. ENTIRE AGREEMENT

This Agreement constitutes the complete understanding between the Parties concerning confidentiality and supersedes all prior oral or written discussions relating thereto.

Any amendment shall be made only by a written instrument signed by both Parties.

13. SEVERABILITY

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

14. EXECUTION

The Parties have read and understood this Agreement and voluntarily agree to be bound by its terms.



DISCLOSING PARTY

Name: _____

Signature: _____

Date: _____

RECEIVING PARTY

For **Perceptive Brains IP**

Authorised Signatory

Name: _____

Designation: _____

Signature: _____

Date: _____

Official Seal

